

25NNCV06010 25NNCV06010

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Case Number: 25NNCV06010 Hearing Date: July 10, 2026 Dept: P

[TENTATIVE] ORDER DENYING

DEFENDANT'S MOTIONS TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES (SET ONE) AND FORM INTERROGATORIES (SET ONE), DENYING MOTION TO COMPEL VERIFICATION OF RESPONSES TO REQUESTS FOR ADMISSION (SET ONE), AND DENYING MONETARY SANCTIONS

I. INTRODUCTION

Plaintiff Merly Mazariegos

Hernandez ("Plaintiff") brings this Song-Beverly Consumer Warranty Act action against Defendant BMW of North America, LLC ("Defendant") arising from Plaintiff's purchase of a used 2021 BMW M340i.

On March 3, 2026, Defendant filed two discovery motions: (1) a motion to compel Plaintiff's further responses to Form Interrogatories, Set One, and Special Interrogatories, Set One, and (2) a motion to compel Plaintiff to serve verified responses to Requests for Admission, Set One. Both motions also seek monetary sanctions. Plaintiff filed oppositions to both motions on June 25, 2026. No replies have been filed.

II. MOTION TO COMPEL FURTHER FROGS AND SPROGS

A motion to compel a further response to interrogatories or production of documents must be noticed within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. (Cal. Code of Civ. Proc.

§§ 2030.300(c), 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.) Otherwise, the propounding party waives any right to compel further responses. (*Id.*) The 45-day time limit is mandatory and jurisdictional. (*Sexton, supra*, 58 Cal. App. 4th at 1410.)

Here, Defendant improperly combines two separate discovery motions into a single noticed motion and hearing reservation. Specifically, Defendant seeks to compel further responses to both Form Interrogatories (Set One) and Special Interrogatories (Set One), while also requesting monetary sanctions, through a single motion.

Separate discovery devices generally require separately noticed motions. (See Gov. Code, § 70617(a)(4) [requiring filing fees for each motion or application requiring a hearing]; Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group) ¶ 8:1140.1 Combining multiple discovery motions into a single filing improperly circumvents the filing fee requirements and the Court Reservation System by permitting multiple discovery disputes to proceed under a single reservation.

Moreover, Defendant's Separate Statement does not permit meaningful review of the relief sought. Rather than addressing each interrogatory individually and explaining why a further response is warranted, Defendant broadly asserts that Plaintiff's responses contain "general objections," "boilerplate objections," and identical responses, then requests an order compelling supplemental responses to all interrogatories. Aside from a brief discussion of Form Interrogatories Nos. 4.1 and 17.1, Defendant does not identify the particular deficiencies in the remaining responses or explain why any specific response is incomplete or evasive. As presented, the Court is unable to discern precisely what relief Defendant seeks or the basis for compelling further responses to the numerous interrogatories at issue without independently reviewing the discovery responses.

Based on the foregoing, the Court declines to reach the merits of the motion. The motion is DENIED. Defendant's request for monetary sanctions is likewise DENIED.

III. MOTION TO COMPEL

VERIFICATIONS OF RESPONSES TO RFAs

Defendant moves for an order compelling Plaintiff to serve verified responses to Defendant's Requests for Admission, Set One, and seeks monetary sanctions in the amount of \$2,685.00. (Motion, pp. 3-7.)

In opposition, Plaintiff argues the motion is moot because Plaintiff served verified responses to the Requests for Admission on June 15, 2026, after the motion was filed but before the hearing. Plaintiff contends the defect underlying the motion has therefore been cured. Defendant filed no reply and does not dispute that the verifications have since been served.

Because Plaintiff has served the requested verifications, the relief sought by the motion has already been obtained. The motion is therefore DENIED as MOOT.

Sanctions

Defendant's request for monetary sanctions is also DENIED. Because Plaintiff served the requested verifications before the hearing, thereby curing the defect that gave rise to the motion, and Defendant has not demonstrated any resulting prejudice, the Court declines to impose monetary sanctions.

IV. ORDER

The Court DENIES Defendant's motion to compel further responses to SPROGS Set One and FROGS Set One. The Court further DENIES motion to compel verification of responses to RFAs, Set One.

The Court DENIES request for monetary sanctions.

Defendant is to give notice.

Dated: July 10, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT